

The Indian Government

India is divided into 28 states and eight Union Territories. The Constitution of India provides for a government at the centre and one in each state. This has been done to govern the country properly.

The powers of the central and state governments have been clearly written down in the Constitution. For example, defending the country is the responsibility of the central government, while maintaining law and order within a state is the duty of the state government. The central government helps the state governments whenever the need arises.

FactWise - The Constitution of India was drafted by the Constituent Assembly. It was adopted on 26 November 1949 and came into force on 26 January 1950. We celebrate this day as our Republic Day.

CENTRAL GOVERNMENT

The central government or the union government makes laws for the whole country. This law-making body is known as the Parliament. It consists of the President of India and the two houses – the Lok Sabha and the Rajya Sabha.

Lok Sabha

The Lok Sabha is the highest law-making body in the country. It is also known as the House of the People or the Lower House. Its members are elected directly by the people. The Speaker guides the proceedings in the Lok Sabha. She /He is elected by the members of the House.

The members of the Lok Sabha are elected for a term of five years. Any Indian citizen who is 18 years of age or above can vote in the general elections. The whole country has been divided into a number of small areas called constituencies. The person who gets the highest number of votes in the elections is elected as a Member of Parliament (MP) from that constituency. The Lok Sabha can have a maximum of 552 members.

Rajya Sabha

The Rajya Sabha is the Upper House of the Parliament. Its members are not elected directly by the people. Members of the state legislative assemblies and Union Territories elect them. There can be a maximum of 250 members in the Rajya Sabha. Of these, 238 are elected members and 12 members are nominated by the President of India. The members of the Rajya Sabha are elected for a term of six years. One-

third of its members retire every two years. They are replaced by new members. The Vice President of India is the chairman of the Rajya Sabha.

The President

The President of India is the head of the country. The members of the Lok Sabha, the Rajya Sabha and the state legislative assemblies elect the President. The President is elected for a term of five years.

FORMING THE GOVERNMENT

There are many political parties in our country. This multiparty system is a very important part of our democracy. In a general election different parties field their candidates. People vote for the candidates. The party that gets the maximum seats in the Lok Sabha forms the government at the Centre. The President appoints the leader of this party as the Prime Minister. She/He then forms the council of ministers. It consists of cabinet ministers, ministers of state and deputy ministers. The ministers must be members of the Parliament.

STATE GOVERNMENT

Every state has a Legislative Assembly. It makes laws for the state. The Members of the Legislative Assembly (MLAs) are elected by people who are more than 18 years of age. They are elected for a term of five years. The Governor is the head of a state. She/He is appointed by the President of India for a term of five years.

After the Assembly elections, the Governor invites the leader of the party that has got the maximum seats in the Legislative Assembly to form the government. The leader of the majority party becomes the Chief Minister.

THE JUDICIARY

The Constitution of India provides for an independent judiciary. The Supreme Court in New Delhi is the highest judicial body in our country. It gives the final judgement in any legal case. There can be a maximum of 34 judges in the Supreme Court. The highest judicial position is that of the Chief Justice. All the judges are appointed by the President of India.

The High Court is the highest judicial body in a state. There are also lower courts in every state. Each district, in the state, has its own court.



The Supreme Court of India is in New Delhi.

Word to Know

- nominate - to appoint to an office
- political party - group of people having common aims and ideas, for example Bharatiya Janata Party, Indian National Congress and so on.

Quick Recap

- The Constitution of India provides for a central government and state governments.
- The Parliament is the law-making body. It consists of the President, the Lok Sabha and the Rajya Sabha.
- The Governor and the Chief Minister are the most important people in a state.
- The Supreme Court is the highest judicial body in our country. The highest judicial body in a state is the High Court.